was the English Jurist, John Austin (1790–1859). He in his *Lectures on Jurisprudence* (published posthumously by Sarah Taylor Austin in 1863) enunciated the Austinian theory of law. According to Austin, law is the command of the sovereign and international laws are issued not from a sovereign authority which is politically superior. Therefore, in the absence of a visible sovereign authority the rules cannot be legal rules, but rules of moral of ethical validity only. Austin, contends that, in case of international law, as there is no visible authority with the legislative power and even with any determinate power over the society of states, rules on international law is not true law but positive international morality or opinions or sentiments current among nations generally.

However, there are some scholars who consider international law as a law. Starke gives certain arguments refuting the Austinian view on international law. He contends:

1. Austin's general theory of law has been refuted by modern jurists. They have shown that earlier times many communities without a formal legislative authority had a system of law, which was observed and had also the binding effect like the law of any state with true legislative authority.
2. At present a huge body of 'international legislation' has come into existence as a result of law-making treaties and conventions and, therefore, the proportion of customary international law has diminished in proportion. Though there is an absence of sovereign legislative authority at the international level, the procedure for formulating these rules of international legislation by means of international conferences or through international organizations is settled, if not quite similar or as efficient as any legislative procedures of a state.
3. The authoritative agencies responsible for conducting international business like those occupying positions in various foreign offices, do not consider international law as merely a moral code.

Therefore, Starke opines that international law is law proper and not the vanishing point of jurisprudence. It has a binding force which limits the exercise of national power, though its nature is different